



Bill Number: S.B. 1113

Werner Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Includes screening agency employees among those individuals authorized to serve required documents on a proposed patient admitted to a screening or evaluation agency.
2. Specifies that evaluation agencies and screening agencies are not financially responsible for the service of documents.

WERNER FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1113
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 36-510.01, Arizona Revised Statutes, is amended
3 to read:

4 36-510.01. Notice; personal service of process

5 A. A person who is ordered to undergo involuntary evaluation has
6 the right to receive by personal service the documents specified in
7 section 36-529, subsection E. A person who is the subject of a petition
8 for court-ordered treatment has the right to receive by personal service
9 the documents specified in section 36-536, subsection D. Personal service
10 shall be completed by a peace officer, ~~OR~~ a process server or ~~BY~~ another
11 person ~~authorized by rule 4, Arizona rules of civil procedure~~ AS
12 PRESCRIBED BY LAW OR COURT RULE OR AS ORDERED BY THE COURT, personally
13 handing the documents to the person receiving service. The person who
14 serves the specified documents must file a proof of service with the court
15 that specifies the date, time and manner of service.

16 B. IN A PROCEEDING UNDER THIS CHAPTER INVOLVING A PETITION FOR
17 COURT-ORDERED EVALUATION OR COURT-ORDERED TREATMENT, IF THE PROPOSED
18 PATIENT IS [INPATIENT-AT] [ADMITTED TO A FACILITY THAT IS LICENSED AS A
19 SCREENING AGENCY OR] AN EVALUATION AGENCY [PURSUANT TO THIS CHAPTER] AT
20 THE TIME THE PETITION IS FILED, THE COURT MAY AUTHORIZE A PERSON EMPLOYED
21 BY THE [SCREENING AGENCY OR] EVALUATION AGENCY TO SERVE THE DOCUMENTS
22 SPECIFIED IN SECTION 36-529, SUBSECTION E OR SECTION 36-536, SUBSECTION D,
23 AS APPLICABLE, ON THE PROPOSED PATIENT.

24 ~~B.~~ C. A county, city or town that employs peace officers may
25 contract with a process server ~~or another person authorized by rule 4,~~
26 ~~Arizona rules of civil procedure,~~ to provide service pursuant to this
27 section instead of service by a peace officer.

1 ~~C.~~ D. ~~[EXCEPT FOR SERVICE ON A PROPOSED PATIENT PURSUANT TO~~
2 ~~SUBSECTION B OF THIS SECTION,]~~ An evaluation agency ~~[OR SCREENING AGENCY]~~
3 is not financially responsible for serving the documents required by
4 section 36-529, subsection E or section 36-536, subsection D.

5 Enroll and engross to conform

6 Amend title to conform

CARINE WERNER

1113FloorWERNER.docx

02/20/2026

12:20 PM

C: MH

130VNJNXX